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GLOBAL BUSINESS MOBILITY - SENIOR OR SPECIALIST WORKER VISA



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GLOBAL BUSINESS MOBILITY - SENIOR OR SPECIALIST WORKER VISA

The Global Business Mobility – Senior or Specialist Worker Visa is for senior managers and specialist employees who wish to undertake a temporary work assignment in the UK. The overseas worker must be assigned to a UK business linked to their employer overseas (also known as an intra-company transfer).

The Global Business Mobility – Senior or Specialist Worker Visa does not lead directly to settlement in the UK. However, you may be able to switch into another immigration route which does lead to settlement. Applicants may be joined or accompanied by a partner and dependent children

Requirements for a Global Business Mobility – Senior or Specialist Worker Visa

In order to qualify for a Global Business Mobility – Senior or Specialist Worker Visa, you will need to satisfy UK Visas and Immigration that:

- You are aged 18 or over;
- You are currently working for a business or organisation that is linked to your UK sponsor by common ownership or control, or by a joint venture on which you are sponsored to work;
- You have worked outside the UK for the linked business or organisation for a cumulative period of at least 12 months, unless you are a high earner earning £73,900 per year or more;

- You have a valid **Certificate of Sponsorship** (<https://immigrationbarrister.co.uk/certificates-of-sponsorship-all-you-need-to-know/>) issued by your UK sponsor for the job you are planning to do; <https://www.google.co.uk/search?q=richmond+chambers+in>
- The job you are planning to do is genuine;
- The job you are planning to do is at an appropriate skill level;
- You will be paid a salary which equals or exceeds both a general salary threshold of £48,500 per year and the 'going rate' for the applicable SOC 2020 occupation code;
- Your UK sponsor has paid any required Immigration Skills Charge;
- You have enough money to support yourself without relying on public funds;
- You have provided a valid TB certificate, if required.

The exact requirements you will need to satisfy may vary depending on your circumstances. You may want to speak to an immigration lawyer for expert advice.

To discuss your Global Business Mobility – Senior or Specialist Worker Visa application with one of our immigration barristers, contact our business immigration team on 0203 617 9173 or complete our enquiry form below.

Global Business Mobility – Senior or Specialist Worker Visa Overseas Work Requirement

If you are applying for a Global Business Mobility – Senior or Specialist Worker Visa and your gross annual salary is less than £73,900 (based on working a maximum of 48 hours per week) then you must be currently working for a business or organisation that is linked to your UK sponsor by common ownership or control, or by a joint venture on which you are sponsored to work, and have worked outside the UK for this business or organisation for a cumulative period of at least 12 months.

The 12 months' work outside the UK can have been accumulated over a historic period if you were continuously working for the linked business or organisation, in the UK or overseas, for at least 12 months prior to the date of application and any breaks have only been for statutory maternity, paternity, parental or shared parental leave, statutory adoption leave, sick leave, assisting with a national or international humanitarian or environmental crisis with the agreement of the sponsor group or taking part in lawful industrial action.

If you are earning £73,900 per year or more then you must be currently working for a business or organisation that is linked to your UK sponsor by common ownership or control, or by a joint venture on which you are sponsored to work, but you do not need to have been employed outside the UK for any specific period of time.

Global Business Mobility – Senior or Specialist Worker Visa Certificate of Sponsorship (CoS) Requirement

(<https://www.google.co.uk/search?q=richmond+chambers+immigration+barristers>)

In order to obtain a Global Business Mobility – Senior or Specialist Worker Visa you will need to have a valid **Certificate of Sponsorship** (<https://immigrationbarrister.co.uk/certificates-of-sponsorship-all-you-need-to-know/>) for the job you are planning to do. Your Certificate of Sponsorship will need to have been issued by an employer that is authorised by the Home Office to sponsor a Senior or Specialist Worker.

Your sponsor must be listed as A-rated on the Home Office's register of licensed sponsors, unless you were last granted permission as a Senior or Specialist Worker and are applying to continue working for the same sponsor as in your last permission.

Your Certificate of Sponsorship must have been issued not more than 3 months before the date of your Global Business Mobility – Senior or Specialist Worker Visa application.

Your Certificate of Sponsorship must include certain mandatory information, including:

- Details of your name, job and salary;
- Confirmation that you have worked for your employer outside the UK for at least 12 months, unless you are a high earner earning £73,900 per year or more;
- A start date which is no more than 3 months after the date of your Global Business Mobility – Senior or Specialist Worker Visa application;
- Confirmation that the Certificate of Sponsorship has not been used in a previous application which was either granted or refused and has not been withdrawn by the sponsor or cancelled by the Home Office.

Genuine Job Requirement

In order to be granted a Global Business Mobility – Senior or Specialist Worker Visa, you will need to satisfy the Home Office that you are being sponsored to undertake a genuine job.

If there are reasonable grounds to believe that the job you are being sponsored to do does not exist, is a sham or has been created mainly so that you can apply for a Global Business Mobility – Senior or Specialist Worker Visa then your application will be refused.

The Home Office will also want to be satisfied that you have not entered into an arrangement whereby you will fill a temporary or permanent position with a third party who is not the sponsor, or undertake contract work which involves undertaking an ongoing routine role or providing an ongoing routine service to a third party who is not your sponsor.

Global Business Mobility – Senior or Specialist Worker Visa Skill Level Requirement

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In order to qualify for a Global Business Mobility – Senior or Specialist Worker Visa, the job you are being sponsored to do must be an eligible job at or above a minimum skill level.

The job you are planning to do must be skilled to at least RQF Level 6 (graduate equivalent). You do not necessarily need to hold a degree, but the role must be equivalent to a graduate level role.

The Home Office has published a **list of jobs that are eligible for the Global Business Mobility routes** (<https://www.gov.uk/government/publications/global-business-mobility-eligible-occupations-and-codes/global-business-mobility-eligible-occupations-and-codes>). The list includes the relevant occupation code, job type and related job titles.

The Home Office also sets out eligible jobs in **Appendix Skilled Occupations** (<https://www.gov.uk/guidance/immigration-rules/immigration-rules-appendix-skilled-occupations>). Each eligible job has a SOC 2020 occupation code. You must be sponsored for a job in an eligible SOC 2020 occupation code listed in Appendix Skilled Occupations.

You will usually meet the job skill level requirement if the job you are being sponsored for is on the list.

However, your sponsor must choose an appropriate occupation code. If the Home Office has reasonable grounds to believe that your sponsor has not chosen the most appropriate occupation code then your application for a Global Business Mobility Visa will be refused.

In assessing whether your sponsor has chosen the most appropriate occupation code, the Home Office will consider factors such as whether they have shown a genuine need for the job as described, whether you have the appropriate skills, qualifications and experience needed to do the job as described and the sponsor's history of compliance with the immigration system.

Global Business Mobility – Senior or Specialist Worker Visa Salary Requirement

Employers seeking to transfer an employee under the Global Business Mobility – Senior or Specialist Worker Visa route must pay their skilled workers a salary which equals or exceeds both a general salary threshold requirement and the 'going rate' for the occupation (as set out in the relevant occupation code mentioned above).

General salary threshold requirement

The general salary threshold requirement under the Global Business Mobility – Senior or Specialist Worker Visa route is £48,500 per year. Therefore, in most cases an applicant for a Global Business Mobility – Senior or Specialist Worker Visa must be paid a salary which

equals or exceeds £48,500 per year and 100% of the pro-rated going rate for the occupation as set out in the SOC 2020 occupation code, whichever is higher/
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The assessment of salary is based on guaranteed basic gross pay (up to 48 hours per week) plus allowances which are guaranteed to be paid for the duration of the employment in the UK (such as London weighting) or are paid as a mobility premium or to cover the additional cost of living in the UK.

If the applicant is being sponsored to work more than 48 hours a week, only the salary for the first 48 hours a week will be considered towards the general salary requirement.

If the applicant is being sponsored to work a pattern where the regular hours are not the same each week, resulting in uneven pay then work in excess of 48 hours in some weeks can be considered towards the salary threshold of £48,500, providing the average over a regular cycle (which can be less than, but not more than, 17 weeks) is not more than 48 hours a week. In addition, any unpaid rest weeks will count towards the average when considering whether the salary thresholds are met.

Going rate requirement

The Home Office has published a list of going rates for eligible Global Business Mobility occupation codes (<https://www.gov.uk/government/publications/global-business-mobility-going-rates-for-eligible-occupations/global-business-mobility-going-rates-for-eligible-occupations>). The Home Office also sets out the going rates for jobs that are eligible for a Global Business Mobility – Senior or Specialist Worker Visa in **Appendix Skilled Occupations** (<https://www.gov.uk/guidance/immigration-rules/immigration-rules-appendix-skilled-occupations>).

The annual salaries stated are based on a 37.5-hour working week and must be pro-rated for other working patterns.

Your full weekly hours will be included when checking your salary against the going rate, even if you work more than 48 hours per week.

Immigration Skills Charge Requirement

Your sponsor must also have paid in full any required Immigration Skills Charge (<https://immigrationbarrister.co.uk/immigration-skills-charge-a-guide-for-employers/>).

The Immigration Skills Charge is a charge for each foreign worker that a sponsoring employer seeks to employ. The Immigration Skills Charge must be paid each time a sponsoring employer assigns a Certificate of Sponsorship to a migrant.

Global Business Mobility – Senior or Specialist Worker Visa Financial Requirement

(/). <https://www.google.co.uk/search?q=richmond+chambers+in>

Subject to the exemptions below, you will need to have cash funds of at least £1,270 available.

You will need to have held the money for at least 28 consecutive days ending not more than 31 days before the date of your Global Business Mobility – Senior or Specialist Worker Visa application.

You will be exempt from the financial requirement if your sponsor is willing to meet your maintenance costs up to the end of the first month of your employment, to an amount of at least £1,270, if necessary. Your sponsor will need to confirm this on your Certificate of Sponsorship.

If you are applying for permission to stay and have been in the UK with permission for 12 months or more at the date of application, you will meet the financial requirement and will not need to show funds.

Global Business Mobility – Senior or Specialist Worker Visa English Language Requirement

Senior or Specialist Worker Visa applicants do not need to satisfy an English language requirement.

Switching into the Global Business Mobility – Senior or Specialist Worker Visa Route

If you currently have leave to remain in another immigration category, you may extend your stay by switching into the Global Business Mobility – Senior or Specialist Worker route unless you have, or were last granted, permission as a Visitor, Short-term student, Parent of a Child Student, Seasonal Worker, Domestic Worker in a Private Household or outside the Immigration Rules.

Duration of a Global Business Mobility – Senior or Specialist Worker Visa

If your application for a Global Business Mobility – Senior or Specialist Worker Visa is approved, you will be granted entry clearance for either the time given on your Certificate of Sponsorship plus 14 days or a period of 5 years, whichever is shorter.

You will be able to apply to extend your Senior or Specialist Worker Visa or apply for another one as many times as you like, up to the maximum time period allowed in the category (see below).

Maximum Time in the Global Business Mobility Routes

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(<https://www.google.co.uk>

If your application for a Global Business Mobility – Senior or Specialist Worker Visa is successful you will be able to extend your stay in the UK up to a maximum period of:

- 5 years in any 6 year period if you are paid less than £73,900 per year; or
- 9 years in any 10 year period if you are paid £73,900 or more per year.

When calculating the period of time spent on the Global Business Mobility routes the Home Office will consider all previous periods of permission granted on the Global Business Mobility routes and all previous periods of permission granted on the Intra-Company routes.

Under a previous version of the route, there was a cooling-off requirement which prevented a person re-entering the UK on the route for 12 months after departing. This cooling-off provision no longer applies.

Conditions of Stay on a Global Business Mobility – Senior or Specialist Worker Visa

Global Business Mobility – Senior or Specialist Worker Visa holders are permitted to work for their sponsor in the job described on their Certificate of Sponsorship. They may also undertake a course of study and voluntary work. Access to public funds is not permitted.

Settlement on the Global Business Mobility – Senior or Specialist Worker Visa Route

The Global Business Mobility – Senior or Specialist Worker Visa does not lead directly to settlement in the UK. However, once in the UK, you may be able to switch into another immigration route which does lead to settlement, such as the **Skilled Worker** (<https://immigrationbarrister.co.uk/personal-immigration/long-term-work-visas/skilled-worker-visa/>) route or the **Innovator Founder** (<https://immigrationbarrister.co.uk/personal-immigration/business-visas/innovator-founder-visa/>) route. You will need to satisfy the requirements of the immigration route that you wish to extend into. Details of all the main immigration routes, including whether they lead to settlement, are available on our website.

You may also be eligible to extend your stay until you qualify for settlement on the basis of Long Residence (<https://immigrationbarrister.co.uk/personal-immigration/settlement-in-the-uk/long-residence-ilr/>).

Dependants of Global Business Mobility – Senior or Specialist Worker Visa Applicants

Global Business Mobility – Senior or Specialist Worker Visa holders can be joined or accompanied by a dependent partner over the age of 18 and dependent children under the age of 18.

Global Business Mobility Sponsor Licence Application

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The Global Business Mobility routes are open to businesses of all sizes, including those with a trading presence outside the UK and a qualifying link to a UK business.

(<https://www.google.co.uk>)

In order to hold a Global Business Mobility sponsor licence, the UK business that will be receiving the worker must:

- Have an existing presence in the UK;
- Have qualifying links to an overseas business from which it will receive workers;
- Have suitable key personnel who will be responsible for the managing the licence; and
- Have systems in place to meet the sponsor licence duties.

Qualifying links to UK businesses are specific to the type of work assignment which is being undertaken in the UK.

In the case of a Global Business Mobility – Senior or Specialist Worker sponsor the UK business must be linked to the overseas business that will send workers by common ownership or control, or by a joint venture agreement.

How Our Immigration Barristers Can Help

Our team of business immigration barristers has experience in assisting employers and skilled workers across a variety of industries in companies of all sizes. Our barristers can help you with planning to ensure that you meet your start date and ensure that your career progression will fit your immigration goals. Our business immigration barristers can also assist UK employers to obtain the right sponsor licence, maintain their licence at the highest rating and comply with their sponsor duties.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team, dedicated to providing clear and reliable immigration advice to employees of multinational employers as part of a professional and friendly service.

WE CAN ALSO ASSIST WITH

Obtaining a Global Business Mobility - Senior or Specialist Worker Sponsor Licence



Applications for extension of stay as a Global Business Mobility - Senior or Specialist Worker



Applications for settlement as a Global Business Mobility - Senior or Specialist Worker



Fresh applications, Administrative reviews and Judicial reviews for Global Business Mobility - Senior or Specialist Workers <https://www.google.co.uk/search?q=richmond+chambers+in>

Applications for Skilled Worker Visas



WHAT CAN WE HELP YOU WITH?

To discuss your Global Business Mobility - Senior or Specialist Worker Visa application with one of our immigration barristers, contact our business immigration team on 0203 617 9173 or complete our enquiry form.

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By Annie Ee - Senior Legal Associate

05 Mar 2025

In This Article 1. Overview of the UK Expansion Worker and Senior or Specialist Worker Routes 2. Sponsorship Requirements for UK Expansion Workers and Senior or Specialist Workers 3. Salary Requirements for UK...

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UK Expansion Worker Visa (GBM) Application Guide

(<https://immigrationbarrister.co.uk/uk-expansion-worker-visa-gbm-application-guide/>) (<https://www.google.co.uk/search?q=richmond+chambers+in>)
 By Annie Ee - Senior Legal Associate
 18 May 2023

In our earlier post Senior or Specialist Worker Visa (GBM) FAQs, we provided answers to a number of frequently asked questions regarding the Senior or Specialist Worker Visa. In this application guide we look...

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The UK Expansion Worker & Skilled Worker Routes Compared

(<https://immigrationbarrister.co.uk/the-uk-expansion-worker-skilled-worker-routes-compared/>)

By Georgina Griggs - Immigration Barrister

11 Oct 2022

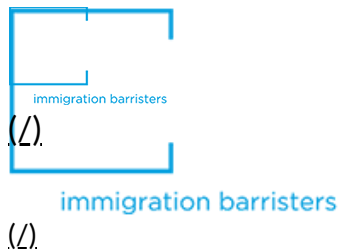
Following the recent changes to the Immigration Rules, which took effect at 9:00am on 11 April 2022, it is clear that the Home Office is moving in one direction when it comes to business routes – sponsorship. With...

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